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NURS 4103 Health Care Law Study Guide

SECTION 01

Overview

This study guide covers the health care law concepts in the NURS 4103 Fall 2025 Health Care Law Study Guide & Worksheet. The course addresses legal concepts that affect professional nursing practice, including **HIPAA**, **EMTALA**, malpractice, torts, informed consent, AMA, the Affordable Care Act, chemically impaired nurses, and related topics. The material is intended for exam preparation and for applying legal principles in clinical practice.

SECTION 02

Key Points

HIPAA protects patient privacy and confidentiality. Nurses must protect **PHI**, avoid discussing patient information in public or online, and follow the **minimum necessary** disclosure rule.

EMTALA requires hospitals to provide medical screening exams, stabilize emergency medical conditions, and transfer patients only when necessary and appropriate.

Torts are divided into intentional torts (assault, battery, false imprisonment, invasion of privacy/breach of confidentiality) and unintentional torts (negligence and malpractice).

Malpractice requires five elements: duty, breach, harm, causation, and injury.

The **Affordable Care Act (2010)** expanded access to care, emphasized quality through Value-Based Purchasing, penalizes hospitals for high readmissions or hospital-acquired conditions, created the insurance marketplace, and banned denial for pre-existing conditions.

Nurses leaving **AMA** must be sure the patient understands the risks, document the decision and reasoning, obtain a signed AMA form, and notify the provider.

The **Patient Self-Determination Act (1990)** gives patients the right to make healthcare decisions, accept or refuse treatment, and complete advance directives.

The **State Nurse Practice Act** defines nursing roles, standards, and scope of practice, and is enforced by the state Board of Nursing (BON).

Nurses must report impaired colleagues and drug diversion to the supervisor or state BON.

Safe staffing laws vary by state, and federal Conditions of Participation link Medicare funding to staffing quality.

NURSING REMINDER

Nursing reminder: Legal questions on the exam often hinge on who must act and what must be documented. Know which law applies to each situation, and know the reporting obligations.

SECTION 03

Nursing Concepts & Clinical Implications

HIPAA (Health Insurance Portability and Accountability Act)

HIPAA protects patient privacy and confidentiality. Nurses must:

- Protect **PHI** (Protected Health Information).
- Avoid discussing patient information in public or online, including on platforms such as Snapchat, TikTok, or through texting.
- Follow the **minimum necessary** disclosure rules.

Violations may result in fines, job loss, or loss of licensure.

NURSING REMINDER

Nursing reminder: Posting a patient's photo or information on social media without consent is a HIPAA violation. Privacy applies in every setting, including online and in casual conversation.

EMTALA (Emergency Medical Treatment and Labor Act)

EMTALA is a federal law requiring hospitals to:

- Provide medical screening exams to all who request care.
- Stabilize emergency medical conditions.
- Transfer patients only when necessary and appropriate.

Penalties include fines of up to $50,000 and loss of Medicare funding.

Torts and Legal Terms

Intentional Torts

- **Assault:** threat of harm.
- **Battery:** unwanted touching.
- **False imprisonment:** holding a patient against their will.
- **Invasion of privacy / breach of confidentiality.**

Unintentional Torts

- **Negligence:** failure to act reasonably.
- **Malpractice:** professional negligence. It requires duty, breach, harm, causation, and injury.

NURSING REMINDER

Nursing reminder: Malpractice requires all five elements (duty, breach, harm, causation, and injury). Be prepared to identify which element is missing or present in a scenario.

Affordable Care Act (ACA, 2010)

The ACA:

- Expanded access to care.
- Emphasized quality over quantity through Value-Based Purchasing.
- Penalizes hospitals for high readmission rates or hospital-acquired conditions.
- Created an insurance marketplace and banned denial of coverage for pre-existing conditions.

Patient Leaving Against Medical Advice (AMA)

When a patient leaves AMA, the nurse must:

- Ensure the patient understands the risks.
- Document the patient's decision and reasoning.
- Obtain a signed AMA form.
- Notify the provider.

NURSING REMINDER

Nursing reminder: The AMA process protects both the patient and the nurse. Confirm understanding, document the decision and reasoning, obtain the signed form, and notify the provider.

Patient Self-Determination Act (1990)

Patients have the right to:

- Make decisions about their healthcare.
- Accept or refuse treatment.
- Complete advance directives, including DNR orders, living wills, and powers of attorney (POA).

State Nurse Practice Act and Legal Practice

The Nurse Practice Act:

- Defines nursing roles, standards, and scope of practice.
- Is enforced by the state Board of Nursing (BON).
- Allows disciplinary actions including fines, probation, suspension, and revocation.
- Includes mandatory reporting for impaired nurses or unsafe conduct.

Chemically Impaired Nurse and Drug Diversion

Signs of Impairment

- Slurred speech.
- Mood swings.
- Frequent bathroom breaks.
- Documentation errors.

Drug Diversion Methods

- Excessive waste.
- Tampering.
- Falsifying records.

Nurses should report suspected impairment or diversion to the supervisor or state BON.

NURSING REMINDER

Nursing reminder: Nurses are required to report impaired colleagues. Reporting to the supervisor or state BON is the expected action when impairment or diversion is suspected.

Safe Staffing Laws

- California is the only state with mandatory nurse-patient ratios for all units.
- Other states may have unit-specific mandates, such as for ICU or L&D units.
- Federal Conditions of Participation link Medicare funding to staffing quality.

Documentation and Legal Protection

Documentation is central to legal protection. The AMA process requires documenting the patient's decision and reasoning. The worksheet asks students to explain how documentation can protect nurses in court.

SECTION 04

Core Definitions

PHI (Protected Health Information): patient information protected under HIPAA.

Minimum necessary: the HIPAA rule requiring disclosure limited to what is needed.

EMTALA: federal law requiring hospitals to screen, stabilize, and appropriately transfer emergency patients.

Assault: a threat of harm.

Battery: unwanted touching.

False imprisonment: holding a patient against their will.

Invasion of privacy / breach of confidentiality: unauthorized disclosure or intrusion into a patient's private information.

Negligence: failure to act reasonably.

Malpractice: professional negligence, requiring duty, breach, harm, causation, and injury.

Affordable Care Act (ACA, 2010): legislation that expanded access to care and emphasized quality.

Value-Based Purchasing: the ACA approach emphasizing quality over quantity.

AMA (Against Medical Advice): a patient leaving care against the provider's recommendation, requiring risk explanation, documentation, a signed form, and provider notification.

Patient Self-Determination Act (1990): law giving patients the right to make and document healthcare decisions.

Advance directives: documents including DNR orders, living wills, and POA.

Nurse Practice Act: state law defining nursing roles, standards, and scope of practice.

BON (Board of Nursing): the state body that enforces the Nurse Practice Act.

Chemically impaired nurse: a nurse whose practice is affected by chemical substances, identified through signs such as slurred speech or documentation errors.

Drug diversion: misuse of medications, including excessive waste, tampering, or falsifying records.

Conditions of Participation: federal requirements linking Medicare funding to staffing quality.

SECTION 05

NCLEX-Style Focus Areas

Privacy and Confidentiality

Recognize HIPAA violations, including social media posts and discussions in public areas.

Apply the minimum necessary rule when deciding what information to share.

Note that HIPAA violations may lead to fines, job loss, or loss of licensure.

Emergency Care

Identify EMTALA obligations: screening, stabilization, and appropriate transfer.

Recognize that a failure to screen a patient who later dies may be an EMTALA issue, as in the worksheet scenario.

Know the EMTALA penalties: fines up to $50,000 and loss of Medicare funding.

Torts and Malpractice

Distinguish intentional torts (assault, battery, false imprisonment, invasion of privacy) from unintentional torts (negligence, malpractice).

Identify whether a scenario describes a threat (assault), unwanted touching (battery), or restraint of a patient against their will (false imprisonment).

Check that all five malpractice elements are present: duty, breach, harm, causation, and injury.

Recognize that a wrong medication causing death and a patient falling because bed rails were not raised are unintentional scenarios involving negligence.

NURSING REMINDER

Nursing reminder: When a scenario involves restraint without a physician order, think about false imprisonment. When it involves a threat to restrain, think about assault.

Informed Decisions and AMA

Confirm that the patient understands risks before AMA departure.

Document the patient's decision and reasoning, obtain the signed AMA form, and notify the provider.

Recognize patient rights under the Patient Self-Determination Act: decision-making, acceptance or refusal of treatment, and advance directives (DNR, living will, POA).

Affordable Care Act

Link Value-Based Purchasing to quality outcomes rather than volume.

Recognize that hospitals are penalized for high readmission rates and hospital-acquired conditions.

Know that the ACA banned denial for pre-existing conditions and created the insurance marketplace.

Scope of Practice and Impairment

Identify the Nurse Practice Act as the source of scope of practice and standards, enforced by the state BON.

Recognize signs of chemical impairment: slurred speech, mood swings, frequent bathroom breaks, and documentation errors.

Recognize drug diversion methods: excessive waste, tampering, and falsifying records.

Know that impaired colleagues and suspected diversion must be reported to the supervisor or state BON.

NURSING REMINDER

Nursing reminder: A nurse who suspects a colleague of impairment or diversion has a reporting duty. The exam tests whether you know to report to the supervisor or state BON rather than handle the situation alone.

Staffing

Know that California is the only state with mandatory nurse-patient ratios for all units.

Recognize that other states may have unit-specific mandates, such as for ICU or L&D.

Link federal Conditions of Participation to Medicare funding and staffing quality.